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Case Number: 24STCV21056 Hearing Date: September 16, 2026 Dept: 413

TENTATIVE

RULING

HEARING DATE: September 16, 2026

CASE NUMBER: 24STCV21056

CASE NAME: John Jezzini v. Hillcrest Davidson and Associates, LLC, et al.

MOVING PARTY: Plaintiff and Cross-Defendant

JLS Capital, LLC

JOINDERS IN

MOTION: Cross-Defendants John

Jezzini, Elevate Holdings, First Defense Security, Inc., High Note, Inc., and
15916 High Knoll Road, LLC

OPPOSING PARTY: Cross-Complainant Hillcrest

Davidson and Associates, LLC

PROCEEDING: Special Motion to Strike (Code Civ. Proc. § 425.16)

RULING SUMMARY: JLS's special motion to strike the

first through fifth causes of action of the Cross-Complaint and the other

Cross-Defendants' joinders in the motion is GRANTED. JLS may file a motion for attorneys' fees

pursuant to section 425.16(c) of the Code of Civil Procedure. The Court continues the Case Management

Conference to _____, 2026, at 8:30AM.

Background

On

August 15, 2024, John Jezzini ("Plaintiff") filed a Complaint against Hillcrest Davidson and Associates, LLC ("Hillcrest"), Kenny Williams ("Williams") (collectively "Defendants"), and Does 1 to 50. The Complaint alleges causes of action for Libel and Civil Harassment.

On June

17, 2025, Defendants filed a cross-complaint against Plaintiff, JLS Capital LLC ("JLS"), Sean Atwood, Elevate Manufacturing, Inc., Elevate Holdings, 15916 High Knoll Road LLC, Canna Pharmaceuticals, Inc., Green Healing, High Note, Inc., WHHD, Inc., First Defense Security, Inc. (collectively, "Cross-Defendants"), and Roes 1 to 10. The Cross-Complaint alleges causes of action for (1) Abuse of Process, (2) Malicious Prosecution, (3) Fraud, (4) Civil Conspiracy, (5) Intentional Infliction of Emotional Distress, (6) Common Count for Money Had and Received, and (7) Common Count for Account Stated.

On May

4, 2026, JLS filed a Special Motion to Strike under CCP § 425.16 ("anti-SLAPP"). The same day, Cross-Defendants John Jezzini, Elevate Holdings, First Defense Security, Inc., High Note, Inc., and 15916 High Knoll Road, LLC each filed a notice of joinder, adopting the motion on the ground that the allegations against them are identical to those against JLS.

Hillcrest

opposes the Motion.

Special

Motion to Strike (CODE CIV. PROC., § 425.16)

I. Legal Standard

Section 425.16 of the Code of

Civil Procedure sets forth the procedure governing anti-SLAPP motions. In pertinent part, it provides:

A cause of action against a person arising from any act of

that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.

(Code Civ. Proc., § 425.16(b)(1).) “[A]n anti-SLAPP motion, like a conventional motion to strike, may be used to attack parts of a count as pleaded.” (Baral v. Schnitt, (2016) 1 Cal.5th 376, 393.) The purpose of the statute is to identify and dispose of lawsuits brought to chill the valid exercise of a litigant’s constitutional right of petition or free speech. (Code Civ. Proc., § 425.16(a); Sylmar Air Conditioning v. Pueblo Contracting Services, Inc. (2004) 122 Cal.App.4th 1049, 1055-1056.)

Courts employ a two-step process to evaluate anti-SLAPP motions. (Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 61.) To invoke the statute’s protections, the defendant must first show that the challenged lawsuit arises from protected activity, such as an act in furtherance of the right of petition or free speech. (Ibid.) From this fact, courts “presume the purpose of the action was to chill the defendant’s exercise of First Amendment rights.” It is then up to the plaintiff to rebut the presumption by showing a reasonable probability of success on the merits.” (Ibid.) In determining whether the plaintiff has carried this burden, the trial court considers “the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.” (Code Civ. Proc., § 425.16(b)(2); see Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 291.)

II. Discussion

JLS

moves to strike the Cross-Complaint’s first through fifth causes of action on the grounds that each cause of action is based primarily on statements made in the Complaint in this action and interferes with JLS’s statutorily protected speech. (Mot., p. 1.)

a.

Timeliness and Joinders

Hillcrest argues the motion and joinders must be denied on the ground that they are untimely because filed more than 60 days after service of the Cross-Complaint. (Opp., p. 3.)

A special motion to strike “may be filed within 60 days of the service of the complaint or, in the court’s discretion, at any later time upon terms it deems proper.” (Code Civ. Proc., § 425.16(f).)

Cross-Defendants were served with the Cross-Complaint on March 6, 2026. (See 040/3/2026 Proof of Service.) JLS’s anti-SLAPP motion was filed on May 4, 2026. Measured from the March 6 service date, JLS’s motion, and Cross-Defendants Elevate Holdings, First Defense Security, High Note, and 15916 High Knoll Road’s joinders, were filed 59 days later. Therefore, JLS’s motion, and the previously mentioned Cross-Defendants’ joinders, are timely.

Cross-Defendant Jezzini answered the Cross-Complaint on July 15, 2025, but did not file his joinder until May 4, 2026, well beyond the 60-day time limit.

The Court nonetheless exercises its discretion under section 425.16(f) to hear Jezzini’s joinder. (Code Civ. Proc., § 425.16(f) [“may be filed....in the court’s discretion, at any later time upon terms it deems proper.”].)

In *Six4Three, LLC v. Facebook, Inc.*, the Court of Appeal found the trial court had not abused its discretion where the trial court considered Facebook’s untimely motion after granting other defendants’ timely motion “based on largely the same allegations and same causes of action,” because it served “both judicial economy and the public policy behind the anti-SLAPP statute.” (*Six4Three, LLC v. Facebook, Inc.* (2025) 109 Cal.App.5th 635, 646.) Similar to Facebook, here Cross-Defendant Jezzini’s joinder is based on the same allegations and same causes of action as the other Cross-Defendants’ joinders, discovery is still open, and no trial date has been set. Permitting Cross-Defendant Jezzini’s joinder advances the purpose of the anti-SLAPP statute.

JLS's motion is thus timely, and
Cross-Defendants' joinders are permitted.

b.

Prong One – Protected Activity

As noted above, “[i]n ruling on a
defendant's anti-SLAPP motion, the trial court engages in a two-step analysis.”
(Navellier v. Sletten (2002) 29
Cal.4th 82, 88.) First, the court
determines “whether the defendant has made a threshold showing that the
challenged cause of action is one arising from protected activity,” which
includes the defendants' right of petition, or free speech, under a
constitution, in connection with issues of public interest. (Ibid.; Code
Civ. Proc., § 425.16.) “[T]he moving defendant must identify the acts
alleged in the complaint that it asserts are protected and what claims for
relief are predicated on them. In turn, a court should examine whether those
acts are protected and supply the basis for any claims.” (Bonni v. St.
Joseph Health System (2021) 11 Cal.5th 995, 1010.)

JLS argues the common thread in
the Cross-Complaint is that each claim is primarily based on statements made in
the Complaint, which are statutorily protected speech. (Mot., p. 1.)

An “act in furtherance of a
person's right of petition or free speech under the United States or California
Constitution in connection with a public issue,” includes “any written or oral
statement or writing made before a legislative, executive, or judicial
proceeding, or any other official proceeding authorized by law.” (Code Civ.
Proc., § 425.16(e)(1).) The
constitutional right of petition encompasses “the basic act of filing
litigation.” (Navellier, supra, 29
Cal.4th at p. 90, citing Briggs v. Eden Council for Hope Opportunity (1999)
19 Cal.4th 1106, 1115.) Cross-complaints
“alleging a cause of action arising from the plaintiff's act of filing the
complaint against the defendant and the subsequent litigation,” may qualify as
an anti-SLAPP action. (Raining Data
Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1373 [finding a person
may attempt to bring an anti-SLAPP suit alleging that libelous allegations or

statements were contained in the complaint itself.] Causes of action for “malicious prosecution and abuse of process,” by definition arise from the protected activity of filing a complaint. (Id., at p. 1368.)

“A claim arises from protected activity when that activity underlies or forms the basis for the claim.” (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062.) The speech or petitioning activity itself must be “the wrong complained of.” (Id. at p. 1060.) “Allegations of protected activity that merely provide context, without supporting a claim for recovery, cannot be stricken under the anti-SLAPP statute.” (Baral v. Schnitt (2016) 1 Cal.5th 376, 394.)

Here, the first and second causes of action allege Cross-Defendants “filed a groundless lawsuit or legal proceeding in this action,” without “sufficient legal and factual basis and with intent to abuse the cross-complainant system based on fraudulent allegations.” (Cross-Complaint, ¶¶ 1, 11.) The filing of the complaint is the basis of both the first and second causes of action, and is the wrong complained of in both claims. Therefore, both the first and second causes of action arise from protected activity.

The third cause of action alleges the Cross-Defendants “knew that the representations were false when they made them and made the representations recklessly and without regard for its truth.” (Cross-Complaint, ¶ 21.) The basis of the claim is the content of the pleading, and therefore the third cause of action arises from protected petitioning activity.

The fourth and fifth causes of action allege and incorporate each allegation of the first through third causes of action, and rest on the same conduct, i.e., the filing of the Complaint and the statements within. (Cross-Complaint, ¶¶ 28-41.)

To the extent the first and second causes of action allege Cross-Defendants orally uttered false allegations concerning the content of the Complaint, these allegations do not bar the action from being subjected to section 425.16. (See Cross-Complaint, ¶¶ 2,

12.) “[W]here a cause of action alleges both protected and unprotected activity, the cause of action will be subject to section 425.16 unless the protected conduct is ‘merely incidental’ to the unprotected conduct.” (Raining Data Corp., supra, 175 Cal.App.4th at p. 1369, citing Mann v. Quality Old Time Service, Inc. (2004) 120 Cal.App.4th 90, 103.)

Here, because the filing of the Complaint is not “merely incidental” to the causes of action in the Cross-Complaint, any oral communications regarding the contents of the Complaint do not save the Cross-Complaint from JLS’s anti-SLAPP motion.

Based on the foregoing, the Court finds JLS has met its moving burden, as the basis of the claims, i.e., the filing of the Complaint and the content of the Complaint, constitute protected petitioning activity.

c.

Prong Two – Probability of Prevailing

Cross-Defendants, having met their burden on the first prong, the burden shifts to Cross-Complainant to demonstrate a probability of prevailing on the merits. (Equilon, supra, 29 Cal.4th at 67.) The second prong is framed by the complaint (or cross-complaint), but Cross-Complainant cannot rely on the Cross-Complaint. (Martin v. Inland Empire Utilities Agency, (2011) 198 Cal.App.4th 611, 630.) Cross-Complainant must produce evidence showing at least part of the cause of action has merit. (Id.; A.F. Brown Electrical Contractor, Inc. v. Rhino Elec. Supply, Inc. (2006) 137 Cal.App.4th 1118, 1124.)

Hillcrest

fails to meet its burden. Hillcrest argues there is a showing of probability that Hillcrest will prevail in this action based on the face of the pleadings and Cross-Defendants’ own admissions. (Opp., p. 7.) Hillcrest argues that Cross-Defendants have not yet filed a verified answer to the cross-complaint, and that Cross-Defendants’ defenses are vague and do not make a showing of any credible defense. (Opp., pp. 7-8.) Hillcrest argues that a triable issue of fact exists. (Opp., p. 8.)

Hillcrest

submits only the declaration of Kenny Williams, which recites the legal argument of Hillcrest's opposition brief. Hillcrest does not submit any evidence showing that the causes of action have merit. A party cannot meet the second prong by resting on the allegations of the pleading or conclusory statements. Hillcrest has not made a prima facie evidentiary showing, and thus has not met its burden.

Further,

the first, third, fourth, and fifth causes of action are barred as a matter of law. The litigation privilege of Civil

Code section 47 (b), is absolute and applies to "all torts except malicious prosecution," having been held to immunize defendants from liability for abuse of process, intentional infliction of emotional distress, and fraud." (Silberg v. Anderson (1990) 50 Cal.3d 205, 212.) It attaches to any communication "(1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action." (Ibid.)

The

filing of the Complaint and the contents of the Complaint satisfy each element. Therefore, the first, third, fourth, and fifth causes of action are barred under Civil Code section 47, subdivision (b), and Hillcrest cannot show a probability of prevailing on them. As to the malicious prosecution cause of action, Hillcrest cannot show a favorable termination on the claims in the Complaint; therefore, it cannot show a probability of prevailing on that claim.

Conclusion

JLS's

special motion to strike the first through fifth causes of action of the Cross-Complaint is GRANTED.

The

joinders of John Jezzini, Elevate Holdings, First Defense Security, Inc., High Note, Inc., and 15916 High Knoll Road, LLC are GRANTED.

The

first, second, third, fourth, and fifth causes of action are stricken as to JLS Capital, LLC and each joining Cross-Defendant.

JLS may
file a motion for attorneys' fees pursuant to section 425.16(c) of the Code of Civil Procedure. The Court continues the
Case Management Conference to _____, 2026, at 8:30AM.

The
Case Management Conference is continued to _____, 2026, at 8:30AM, in
Dept. 413.

Date: September
16, 2026

William
E. Weinberger

Judge,
Los Angeles Superior Court